

24STCP01657 24STCP01657

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Case Number: 24STCP01657 Hearing Date: July 1, 2026 Dept: 224

N444SS, LLC v. Avire, LLC

TENTATIVE RULING

The Court hereby CONTINUES the hearing on the instant Motion for Attorney's Fees for Avire to submit supplemental evidence demonstrating the amount of time incurred on this matter. The hearing is continued to September 28, 2026 at 9:00 a.m. Supplemental filings demonstrating admissible billing and time entries, hourly rates, etc. are due no later than August 31, 2026.

Introduction

On May 22, 2024, Plaintiff filed the Petition in this action.

On March 26, 2025, Avire filed its Notice of Appeal.

On November 24, 2025, the Court of Appeal issued its opinion, awarding Avire its costs on appeal.

On January 28, 2026, the remittitur issued.

On March 9, 2026, Avire filed the instant Motion for Attorney's Fees and Costs Incurred on Appeal, seeking a total of \$81,970.89, consisting of: (1) \$80,134.50 in attorney's fees; (2) \$514.42 in filing fees; and (3) \$1,321.97 in computerized legal research costs.

No opposition has been filed.

Legal Standard

A party may claim attorney's fees on appeal as required under a statute or contract but must also make such claims within 40 days after the remittitur. (Cal. Rules of Court, Rule 3.1702(c)(1).) Failure to follow the procedure results in loss of the right to costs, although the court has the power pursuant to Code of Civil Procedure § 473 to relieve the delay if failure to timely file was due to mistake, inadvertence, or excusable neglect. (Russell v. Trans Pacific Group (1993) 19 Cal.App.4th 1717, 1729; see also Robinson v. U-Haul Company of California (2016) 4 Cal.App.5th 304, 328.) However, the parties are permitted to

extend the time for filing a motion for attorneys' fees by stipulation for an additional 60 days before the time has expired to file such a motion. (Cal. Rules of Court, Rule 3.1702(c)(2).)

As in the trial court, attorney fees on appeal are recoverable when authorized by statute or contract. (See Code Civ. Proc. § 1021, Civil Code § 1717, Cal. Rules of Court, Rule 3.1702; see also *Serrano v. Unruh* (1982) 32 Cal.3d 621.) Even if a statute does not expressly authorize attorney fees on appeal, a successful party may recover fees incurred on appeal when the statute expressly grants such an award in the trial court, unless the statute specifically provides otherwise. (*Morcos v. Board of Retirement* (1990) 51 Cal.3d 924.) However, where a statute does not permit recovery of attorney fees as costs in the trial court, they necessarily are not awardable on appeal. (*Imperial Bank v. Pim Electric, Inc.* (1995) 33 Cal.App.4th 540.)

The lodestar method of calculation applies to a statutory award of attorney fees unless the statute provides another method. (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1135.) "The determination of what constitutes a reasonable fee generally 'begins with the 'lodestar,' i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate...." "[T]he lodestar is the basic fee for comparable legal services in the community; it may be adjusted by the court based on factors including, as relevant herein, (1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, (4) the contingent nature of the fee award...." (*Graciano v. Robinson Ford Sales, Inc.* (2006) 144 Cal.App.4th 140, 154.)

"In determining the lodestar amount, a prevailing party generally may not recover for work on causes of action on which the party was unsuccessful" except in some cases where amounts are so intertwined that it would be impracticable to separate them out. (*Mann v. Quality Old Time Service, Inc.* (2006) 139 Cal.App.4th 328, 342; *Graciano v. Robinson Ford Sales, Inc.* (2006) 144 Cal.App.4th 140, 157.) "Attorneys fees need not be apportioned between distinct causes of action where plaintiff's various claims involve a common core of facts or are based on related legal theories." *Graciano v. Robinson Ford Sales, Inc.* (2006) 144 Cal.App.4th 140, 159.) "[A]ttorney fees need not be reduced for work on unsuccessful claims if the claims 'are so intertwined that it would be impracticable, if not impossible, to separate the attorney's time into compensable and noncompensable units.'" (*Mann v. Quality Old Time Service, Inc.* (2006) 139 Cal. App. 4th 328, 342.)

In setting the hourly rate for an attorney fees award, courts are entitled to consider the rate of "fees customarily charged by that attorney and others in the community for similar work." (*Bihun v. AT&T Information Systems, Inc.* (1993) 13 Cal. App. 4th 976, 997, overruled on other grounds by *Lakin v. Watkins Associated Indus.* (1993) 6 Cal. 4th 644, 664.) "A fee request that appears unreasonably inflated is a special circumstance permitting the trial court to reduce the award or deny one altogether." (*Chavez v. City of L.A.* (2010) 47 Cal.4th 970, 990.)

Timeliness

A motion to claim contractual attorney's fees on appeal must be served and filed within the time for filing the memorandum of costs on appeal – i.e., within 40 days after issuance of the remittitur. (Cal. Rules of Court, Rule 3.1702(c)(1); Rule 8.278(c)(1).)

The remittitur issued January 28, 2026. Excluding the date of issuance, 40 days from that date is March 9, 2026 (February 2026 had 28 days). Avire served and filed both this Motion and its Memorandum of Costs on Appeal on March 9, 2026.

The Motion is therefore timely, and no relief under Code of Civil Procedure § 473 is required.

Lodestar

Avire requests a lodestar in the amount of \$80,134.50 in attorney fees.

The hourly rates for the timekeepers who billed on this matter range from \$330 to \$675 per hour. Amy Nashon, a partner, billed at \$595 in 2024 and \$645 in 2025. Daniel Rygorsky, a partner, billed at \$675 in 2025. Chinelo Ikem, an associate, billed at \$485 in 2024 and \$535 in 2025. Carol Tenney, a paralegal, billed at \$330 in 2024. (Nashon Decl. ¶ 4.) The Nashon Declaration attests that these are the normal and customary rates for attorneys in California with commensurate levels of education, experience, and expertise. (Id.)

The Court finds the hourly rates to be reasonable.

However, Avire fails to provide, and the Court cannot deduce, approximately how much time has been incurred on the matter such that the amount of requested fees is "reasonable." Key to the lodestar inquiry is whether the amount of time spent is reasonable. While Avire is not required to submit itemized, contemporaneous billing records to recover fees, it is still required to provide some evidence of the hours worked from which the Court can assess reasonableness. As the court explained in *Mardirossian & Associates, Inc. v. Ersoff* (2007) 153 Cal.App.4th 257, 269, a mere request for a flat fee for "services rendered," without any attempt to explain the extent of the services in more than general terms, is insufficient to support an award. A fee applicant must furnish the court with enough information, whether through declarations describing the hours expended or other competent evidence, to permit the court to make an informed evaluation of the time reasonably spent.

Therefore, the Court hereby CONTINUES the hearing on the instant Motion for Attorney's Fees for Avire to submit supplemental evidence demonstrating the amount of time incurred on this matter.

Conclusion

The Court hereby CONTINUES the hearing on the instant Motion for Attorney's Fees for Avire to submit supplemental evidence demonstrating the amount of time incurred on this matter. The hearing is continued to September 28, 2026 at 9:00 a.m. Supplemental filings demonstrating admissible billing and time entries, hourly rates, etc. are due no later than August 31, 2026.

Moving party to give notice.

Parties who intend to submit on this tentative must send an email to the Court at indicating intention to submit on the tentative, and copying all parties in the email communication. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court will adopt the tentative as the final order, or take the matter off calendar at its discretion.